

Court No. - 3

Case :- WRIT - C No. - 22254 of 2022

Petitioner :- Raghawendra Shankar Mishra

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Satyanand Tripathi, Sanjay Prakash Tiwari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"I. Issue a writ in the nature of certiorari calling for record and to quash the impugned notice dated 5.2.2021 and provisional assessment and revenue fixation order dated 16.6.2021 issued by the respondent no.2 (Annexure no.1 to this writ petition).

II. Issue a writ in the nature of mandamus commanding and directing the respondent no.2 to issue final assessment bill to the petitioner strictly in accordance with the provisions of law after considering the objection of the petitioner dated 16.2.2021 (Annexure no.2 to this writ petition)."

Sri Udit Chandra, learned counsel for the respondent / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.8.2022

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